



CLEARWATER COUNTY COURT SYSTEM

Sixth Judicial Circuit | Office of the Clerk of the Circuit Court
Criminal Justice Center, 14250 Court Street, Clearwater

IN THE APPELLATE COURT OF FLORIDA
DIVISION OF CRIMINAL AND CIVIL APPEALS

NOTICE OF APPEAL OF SENTENCE

Appellate Court of Florida - Division of Criminal Appeals

APPELLANT The State of Florida	CASE NUMBER (UCN) A-2026-000117
VS. Marcus D. Reeves	Format: A-2026-000123 (APPELLATE COURT) DIVISION Criminal Appeals JUDGE / HEARING OFFICER Hon. Hollis T. Marren
Full name of party	Divisions: Criminal Appeals Civil Appeals Traffic Appeals

HOW TO USE THIS FORM
File this within 30 days of the judgment and sentence you are challenging. The deadline cannot be extended. Attach a copy of the judgment (Form CR-10) and the ruling being appealed (Form JR-01). An appeal reviews the record for legal error - it is not a new trial.

CASE CAPTION			
APPELLATE CASE NO. A-2026-000117	DIVISION Criminal	DATE FILED 08/18/26	LOWER COURT CASE NO. 26-CF-000418
DEFENDANT / APPELLANT Marcus D. Reeves	USERNAME mreeves_cw	CURRENTLY IN CUSTODY Yes	RELEASE DATE 08/14/27
APPELLEE The State of Florida	TRIAL JUDGE Hon. Hollis T. Marren	TRIAL DIVISION Criminal	DATE OF SENTENCE 10/20/26

NOTICE OF APPEAL OF SENTENCE

The Defendant / Appellant hereby gives notice of appeal from the judgment and sentence entered in the lower court on the date stated above, and states as follows:

JUDGMENT BEING APPEALED		
OFFENSE(S) OF CONVICTION Grand Theft Auto (203.1)	DEGREE F3	PLEA OR VERDICT Guilty plea
SENTENCE IMPOSED 5 years, suspended after 12 months	FINE AND COSTS \$5,328.00	PROBATION TERM 24 months

GROUND(S) FOR APPEAL	
☐ The sentence exceeds the statutory maximum	☐ The sentence is disproportionate to the offense
☐ The Court failed to consider mitigating factors	☐ The Court considered an improper aggravating factor
☐ The Court departed from the guidelines without stated reasons	☐ The plea was not knowing, intelligent, or voluntary
☐ The plea agreement was not honoured by the Court	☐ Evidence was admitted that should have been suppressed
☐ The evidence was legally insufficient to convict	☐ The jury was improperly instructed
☐ The Court denied a meritorious motion	☐ Other (state below)

STATEMENT OF THE ISSUES PRESENTED FOR REVIEW	
NUMBER EACH ISSUE. STATE IT AS A QUESTION THE APPELLATE COURT CAN ANSWER YES OR NO.	
I. Whether the trial court erred in denying the motion to suppress where the stated basis for the st	

CONCISE STATEMENT OF THE FACTS RELEVANT TO THE APPEAL

ONLY THE FACTS THAT BEAR ON THE ISSUES ABOVE, WITH CITATIONS TO THE RECORD WHERE POSSIBLE

The defendant was convicted of grand theft auto following a bench trial and sentenced to five years,

PRESERVATION OF ERROR

FOR EACH ISSUE, STATE WHERE IN THE RECORD THE OBJECTION WAS MADE. UNPRESERVED ISSUES ARE REVIEWED ONLY FOR FUNDAMENTAL ERROR.

Issue I was preserved by contemporaneous objection at the suppression hearing and renewed at trial.

RELIEF SOUGHT

☐ VACATE THE SENTENCE AND REMAND FOR RESENTENCING

The conviction stands but the sentence must be imposed again by the lower court.

☐ REDUCE THE SENTENCE

The appellate court should correct the sentence directly.

☐ VACATE THE CONVICTION AND SENTENCE

The conviction itself cannot stand.

☐ REVERSE AND REMAND FOR A NEW TRIAL

Trial error requires the case to be tried again.

☐ REVERSE AND DISCHARGE THE DEFENDANT

The evidence was insufficient and the defendant may not be retried.

☐ PERMIT WITHDRAWAL OF THE PLEA

The defendant should be allowed to plead anew.

FILINGS AND REQUESTS ACCOMPANYING THIS NOTICE

☐ Copy of the judgment and sentence (CR-10) attached☐ Transcript ordered (Form AD-07)☐ Motion for stay of sentence pending appeal☐ Request to proceed as an indigent (Form CR-09)☐ Oral argument requested☐ Copy of the ruling appealed (JR-01) attached☐ Record on appeal requested at public expense☐ Appellate bond requested☐ Request for appointment of appellate counsel☐ Expedited review requested

BOND AND STAY

STAY REQUESTED	APPELLATE BOND AMOUNT	BOND POSTED	FILING FEE	FEE WAIVED
Yes	\$15,000.00	Yes	\$300.00	No

CERTIFICATE OF SERVICE: I certify that a copy of this Notice of Appeal was furnished to the Office of the State Attorney, to the lower tribunal, and to the Clerk of the Appellate Court on the date written below.

Grant Whitlow

APPELLANT OR APPELLATE COUNSEL

Bar number

PRINTED NAME

Grant Whitlow

DATE

09/10/26

P. Nakamura, Deputy Clerk

APPELLATE CLERK

Notice docketed

PRINTED NAME

P. Nakamura, Deputy Clerk

DATE

09/10/26

APPELLATE CLERK USE ONLY				
DATE DOCKETED	PANEL ASSIGNED	INITIAL BRIEF DUE	ANSWER BRIEF DUE	REPLY BRIEF DUE
11/06/26	Panel C	12/06/26	01/05/27	01/20/27
RECORD DUE FROM LOWER COURT	ORAL ARGUMENT SET	STATUS	NOTES	
11/26/26	02/03/27	Briefing	None	

An appellate court does not hear new witnesses, accept new evidence, or reweigh the credibility of testimony. It decides only whether the lower court applied the law correctly to the record that already exists. Arguments raised for the first time on appeal are usually waived.